we meet difficulties insurmountable to us, we must leave it to those departments of government which have higher powers; to which, however, there may be no necessity to have recourse. Is it altogether a vain expectation, that a state may have other motives than such as arise from the apprehension of coercion, to carry into execution a judgment of the supreme court of the United States, though not conformable to their own ideas of justice? Besides, this argument takes it for granted, that the judgment of the court will be against the state; it possibly may be in favor of the state: and the difficulty vanishes. Should judgment be given against the plaintiff, could it be said to be void, because extra-judicial? If the plaintiff, grounding himself upon that notion, should renew his suit against the state, in any mode in which she may permit herself to be sued in her own courts, would the attorney-general for the state be obliged to go again into the merits of the case, because the matter, when here, was *coram non judice?* Might he not rely upon the judgment given by this court, in bar of the new suit? To me, it seems clear, that he might. And if a state may be brought before this court, as a defendant, I see no reason for confining the plaintiff to proceed by way of petition; indeed, there would even seem to be an impropriety in proceeding in that mode. When sovereigns are sued in their own courts, such a method may have been established, as the most respectful form of demand; but we are not now in a state court; and if sovereignty be an exemption from suit, in any other than the sovereign's own courts, it follows, that when a state, by adopting the constitution, has agreed to be amenable to the judicial power of the United States, she has, in that respect, given up her right of sovereignty.

With respect to the service of the summons to appear, the manner in which it has been served, seems to be as proper as any which could be devised for the purpose of giving notice of the suit, which is the end proposed by it, the governor being the head of the executive department, and the attorney-general the law officer, who generally represents the state in legal proceedings: and this mode is the less liable to exception, when it is considered, that in the suit brought in this court, by the state of *Georgia* against *Brailsford* and others,(*a*) it is conceived in the name of the governor in behalf of the state. If the opinion which I have delivered, respecting the liability of a state to be sued in this court, should be the opinion of the court, it will come, in course, to consider, what is the proper step to be taken for inducing appearance, none having been yet entered in behalf of the defendant. A judgment by default, in the present state of the business, and writ of inquiry for damages, would *be too precipitate in any case, and too incompatible with the dignity of a state in this. Further [*453 opportunity of appearing to defend the suit ought to be given. The conditional order moved for the last term, the consideration of which was deferred to this, seems to me to be a very proper mode; it will warn the state of the meditated consequence of a refusal to appear, and give an opportunity for more deliberate consideration. The order, I think, should be thus: "Ordered, that unless the state of Georgia should, after due notice of this order, by a service thereof upon the governor and attorney-general of the said state, cause an appearance to be entered in behalf of the state, on the

(*a*) *Ante*, p. 402.

5th day of the next term, or then show cause to the contrary, judgment be then entered up against the state, and a writ of inquiry of damages be awarded."

WILSON, Justice—This is a case of uncommon magnitude. One of the parties to it is a State, certainly respectable, claiming to be sovereign. The question to be determined is, whether this state, so respectable, and whose claim soars so high, is amenable to the jurisdiction of the supreme court of the United States? This question, important in itself, will depend on others, more important still; and may, perhaps, be ultimately resolved into one, no less *radical* than this—"do the People of the United States form a Nation?"

A cause so conspicuous and interesting, should be carefully and accurately viewed, from every possible point of sight. I shall examine it, 1st. By the principles of general jurisprudence. 2d. By the laws and practice of particular states and kingdoms. From the law of nations, little or no illustration of this subject can be expected. By that law, the several states and governments spread over our globe, are considered as forming a society, not a nation. It has only been by a very few comprehensive minds, such as those of Elizabeth and the Fourth Henry, that this last great idea has been even contemplated. 3d. And chiefly, I shall examine the important question before us, by the constitution of the United States, and the legitimate result of that valuable instrument.

I. I am first to examine this question by the principles of general jurisprudence. What I shall say upon this head, I introduce, by the observation of an original and profound writer, who, on the philosophy of mind, and all the sciences attendant on this prime one, has formed an era not less remarkable, and far more illustrious, than that formed by the justly celebrated Bacon, in another science, not prosecuted with less ability, but less dignified as to its object; I mean the philosophy of nature. Dr. Reid, in his excellent inquiry into the human mind, on the principles of common sense, speaking of
*454] the sceptical and illiberal *philosophy, which, under bold, but false, pretensions to liberality, prevailed in many parts of Europe before he wrote, makes the following judicious remark: "The language of philosophers, with regard to the original faculties of the mind, is so adapted to the prevailing system, that it cannot fit any other; like the coat that fits the man for whom it was made, and shows him to advantage, which yet will fit very awkward upon one of a different make, although as handsome and well proportioned. It is hardly possible to make any innovation in our philosophy concerning the mind and its operations, without using new words and phrases, or giving a different meaning to those that are received." With equal propriety, may this solid remark be applied to the great subject, on the principles of which the decision of this court is to be founded. The perverted use of *genus* and *species* in logic, and of *impressions* and *ideas* in metaphysics, have never done mischief so extensive or so practically pernicious, as has been done by *states* and *sovereigns*, in politics and jurisprudence; in the politics and jurisprudence even of those who wished and meant to be free. In the place of those expressions, I intend not to substitute new ones; but the expressions themselves I shall certainly use for purposes different from those, for which hitherto they have been frequently used; and one of them I shall apply to an object still more different from that, to which it

has been hitherto, most frequently, I may say, almost universally, applied. In these purposes, and in this application, I shall be justified by example the most splendid, and by authority the most binding; the example of the most refined as well as the most free nation known to antiquity; and the authority of one of the best constitutions known to modern times. With regard to one of the terms, "state," this authority is declared: with regard to the other, "sovereign," the authority is implied only; but it is equally strong: for, in an instrument well drawn, as in a poem well composed, silence is sometimes most expressive.

To the constitution of the United States the term *sovereign* is totally unknown. There is but one place where it could have been used with propriety. But even in that place, it would not, perhaps, have comported with the delicacy of those who ordained and established that constitution. They might have announced themselves *sovereign* people of the United States: but serenely conscious of the past, they avoided the ostentatious declaration.

Having thus avowed my disapprobation of the purposes for which the terms *state* and *sovereign*, are frequently used, and of the object to which the application of the last of them is almost universally made; it is now proper, that I should disclose the meaning which I assign to both, and the application *which I make of the latter. In doing this, I shall have occasion incidentally to evince, how true it is, that states and governments were made for man; and at the same time, how true it is, that his creatures and servants have first deceived, next vilified, and at last, oppressed their master and maker. [*455

Man, fearfully and wonderfully made, is the workmanship of his all-perfect Creator: a state, useful and valuable as the contrivance is, is the inferior contrivance of man; and from his native dignity, derives all its acquired importance. When I speak of a state, as an inferior contrivance, I mean that it is a contrivance inferior only to that which is divine: Of all human contrivances, it is certainly most transcendently excellent. It is concerning this contrivance, that Cicero says so sublimely, "Nothing which is exhibited upon our globe, is more acceptable to that divinity which governs the whole universe, than those communities and assemblages of men, which, lawfully associated, are denominated states."(*a*)

Let a state be considered as subordinate to the People: but let everything else be subordinate to the state. The latter part of this position is equally necessary with the former. For in the practice, and even, at length, in the science of politics, there has very frequently been a strong current against the natural order of things, and an inconsiderate or an interested disposition to sacrifice the end to the means. As the state has claimed precedence of the people; so, in the same inverted course of things, the government has often claimed precedence of the state; and to this perversion in the second degree, many of the volumes of confusion concerning sovereignty owe their existence. The ministers, dignified very properly by the appellation of the magistrates, have wished, and have succeeded in their wish, to be considered as the sovereigns of the state. This second degree of perversion is confined to the old world, and begins to diminish even there: but the first degree is still too prevalent, even in the several states of which our

(*a*) Som. Sup. c. 8.